

Amendment No. 1 to SB1035

Gardenhire
Signature of Sponsor

AMEND Senate Bill No. 1035

House Bill No. 989*

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Section 39-11-621, is amended by deleting the language "or threaten to use" and by adding the following to the end of the section:

A threat to use deadly force, in itself, is not considered use of deadly force for purposes of this section. A private citizen shall not threaten to use deadly force unless the arrest is for:

- (1) A crime committed or threatened against the person making the arrest; or
- (2) A violent crime committed or threatened in the presence of the person making the arrest.

SECTION 2. Tennessee Code Annotated, Section 39-11-602, is amended by deleting "or intended use," in subdivision (2) and by adding the following new subdivision:

- () "Violent crime" means:
 - (A) A criminal offense the elements of which include intentionally causing bodily injury to another; or
 - (B) Any degree of arson, burglary, carjacking, homicide, kidnapping, robbery, sexual battery, rape, and human trafficking.

SECTION 3. This act takes effect July 1, 2026, the public welfare requiring it.